

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200564420CUBC: Aubrey Balkind vs. General Motors LLC
07/08/2026 in Department 44
Motion TO SUBSTITUTE MARK S. MINGELGREEN SUCCESSOR TRUSTEE IN
PLACE OF DECEASED PLAINTIFF, AUBREY BALKIND

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Substitute Mark Mingelgreen as Successor Trustee in Place of Deceased Plaintiff, Aubrey Balkind

Tentative Ruling: The Motion is DENIED without prejudice.

Plaintiff, Aubrey Balkind (“Plaintiff”), filed this action on April 6, 2022. On May 15, 2025, Plaintiff died. Mr. Mark S. Mingelgreen filed a declaration in support of the Motion, to which he has attached both Plaintiff’s trust that names him as successor trustee, and Plaintiff’s death certificate. (Mingelgreen Decl., ¶¶ 1-8, Exhs. 1-2.) Under Plaintiff’s declaration of trust, Plaintiff was the original trustee, and Mr. Mingelgreen is the successor trustee. (Mingelgreen Decl., ¶ 5, Exh. 2, pp. 1-2.) Mr. Mingelgreen is not a beneficiary of the trust, nor is Mr. Mingelgreen’s relationship to Plaintiff in evidence. (*Id.* at pp. 9-16.) Rather, the beneficiaries of the trust are Devin Balkind if he survives Plaintiff, or if Mr. Balkind does not survive Plaintiff, divided equally among Cilliers Blaschke and a charity, the Sane Living Foundation. (*Id.* at pp. 9-10.)

The attorneys for Plaintiff filed a Notice of Motion and Motion to Substitute Mark S. Mingelgreen Successor Trustee in Place of Deceased Plaintiff, Aubrey Balkind.

Code of Civil Procedure, section 377.31 provides for continuation of a cause of action when the plaintiff dies during the pendency of the lawsuit. (*Adams v. Superior Court* (2011) 196 Cal.App.4th 71, 79.) The judge shall allow the proceedings to continue by the decedent's "personal representative, or if there is none, by the decedent's successor in interest." (Code Civ. Proc. § 377.20.) Code of Civil Procedure section 377.11 defines "decedent's successor in interest" as the "beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property is the subject of the cause of action." The definition of "personal representative" under Probate Code section 58 does not include a trustee or a successor trustee. Accordingly, Mr. Migelgreen is neither a personal representative, nor a successor *in interest* to Plaintiff as it is defined under Code of Civil Procedure section 377.11 or Probate Code section 58. Rather, Mr. Mingelgreen is a successor *trustee* to Plaintiff who is not a beneficiary of her estate. Thus, Mr. Mingelgreen is not a person contemplated to continue this action under Code of Civil Procedure section 377.31.

Plaintiff shall give notice.